Rights for nature

In the past, even national parks had been created without consideration for the needs of Indigenous peoples. One such park was Te Urewera, an area of rainforest in New Zealand that is the homeland of the Tuhoe people. British colonists removed the Tuhoe people from the forest in the 1860s, and the Tuhoe were not consulted when the New Zealand government set up a national park there in 1954. After a long legal battle, the groundbreaking Te Urewera Act of 2014 recognized the forest as the homeland of the Tuhoe people and granted it legal personhood.

Ecuador had been the first country to enshrine rights of nature in its 2008 constitution, but since then, the status of legal personhood has been granted to other natural environments worldwide.

“In our culture, the Marañón River is a living being.”

Emilson Flores

Kukama woman, Peru

Roles and rights

Environmentalists, governments, and non-governmental organizations (NGOs) now acknowledge the vital role played by Indigenous peoples in the conservation of ecosystems. Indigenous peoples’ understanding of the environment and how best to manage it has been handed down through generations. This traditional ecological knowledge (TEK) has revealed much, such as the medicinal qualities of plants formerly unknown in Western science, the behavior of animals, and how to manage land in the most sustainable manner.

One contentious issue has been the rights to genetic information sequenced by corporations from plants, animals, and fungi. Known as digital sequence information (DSI), much of it comes from the ancestral